

IN THE SENATE

SENATE BILL NO. 1230

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ALCOHOLIC BEVERAGES; AMENDING SECTION 23-509B, IDAHO CODE, TO REVISE A PROVISION REGARDING A FORM OF APPLICATION AND TO ESTABLISH A PERMIT FEE; AMENDING SECTION 23-904, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE FEES; AMENDING SECTION 23-1004, IDAHO CODE, TO REVISE A PROVISION REGARDING LICENSE FEES; AMENDING SECTION 23-1005A, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE FEES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 23-1007A, IDAHO CODE, TO REVISE A PROVISION REGARDING PERMIT FEES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 23-1014, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE FEES; AMENDING SECTION 23-1309A, IDAHO CODE, TO REVISE A PROVISION REGARDING REGISTRATION FEES, TO REVISE A PROVISION REGARDING PERMIT FEES, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 23-1315, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE FEES; AMENDING SECTION 23-1317, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE FEES AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 23-1336, IDAHO CODE, TO REVISE A PROVISION REGARDING PERMIT FEES AND TO MAKE TECHNICAL CORRECTIONS; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 23-509B, Idaho Code, be, and the same is hereby amended to read as follows:

23-509B. DONATIONS FOR BENEVOLENT, CHARITABLE, OR PUBLIC PURPOSES -- PERMIT REQUIRED. (1) As used in this section:

(a) "Director" means the director of the Idaho state police.

(b) "Event" means an event held for benevolent, charitable, or public purposes where all proceeds from the event, after deducting reasonable expenses, must be donated for a benevolent, charitable, or public purpose.

(c) "Licensee" is as defined in section 23-902, Idaho Code.

(d) "Liquor producer" means any liquor manufacturer, producer, or supplier or a representative of a manufacturer, producer, or supplier.

(e) "Person" is as defined in section 23-902, Idaho Code, and who has not been issued a license in this state for the sale of alcoholic beverages.

(2) Notwithstanding the provisions of section 23-509, Idaho Code, any liquor producer may donate packaged, unopened, and sealed liquor to a person for an event as provided in this section. Any liquor donated under this section must have been acquired from the state liquor division.

(3) To sell or dispense packaged, unopened, and sealed liquor, a person must apply for a permit from the alcohol beverage control bureau. The director may issue the permit. All proceeds from the sale, after deducting

1 reasonable expenses, must be donated for a benevolent, charitable, or public
2 purpose.

3 (4) The director shall prescribe the form of application, pursuant to
4 his duties in section 23-932, Idaho Code. Such form of application shall be
5 substantially similar to the form described in section 23-1336, Idaho Code,
6 and may include any other information the director deems necessary and any
7 information directly related to the event and the applicant that the direc-
8 tor may require. The director shall collect a fee of fifty dollars (\$50.00)
9 for each permit issued.

10 (5) A licensee may, on behalf of a person granted a permit under this
11 section, receive and store liquor to be used at the event and may dispense
12 such liquor to attendees of the event for which the permit was issued. The
13 licensee must act in accordance with any applicable provisions of this ti-
14 tle.

15 (6) The director may suspend, revoke, or refuse to renew a license for
16 any violation of or failure to comply with the provisions of chapter 9, ti-
17 tle 23, Idaho Code. Procedures for the suspension, revocation, or refusal to
18 grant or renew licenses shall be in accordance with the provisions of chapter
19 52, title 67, Idaho Code.

20 (7) If a permittee fails to comply with permit requirements, the direc-
21 tor may revoke existing permits or deny future permits under this section un-
22 til the permittee cures the failure.

23 SECTION 2. That Section 23-904, Idaho Code, be, and the same is hereby
24 amended to read as follows:

25 23-904. LICENSE FEES. Each licensee licensed under the provisions of
26 this act shall pay an annual license fee to the director as follows:

27 (1) For each license in a city of one thousand (1,000) population or
28 less, ~~three hundred dollars (\$300)~~ four hundred eighty dollars (\$480) per
29 annum.

30 (2) For each license in a city of from one thousand (1,000) to three
31 thousand (3,000) population, ~~five hundred dollars (\$500)~~ eight hundred dol-
32 lars (\$800) per annum.

33 (3) For each license in a city having a population of more than three
34 thousand (3,000), ~~seven hundred fifty dollars (\$750)~~ one thousand two hun-
35 dred dollars (\$1,200) per annum.

36 (4) For each railroad train, ~~for sale sales only~~ for sale sales only in buffet, club or din-
37 ing cars, ~~fifty dollars (\$50.00)~~ eighty dollars (\$80.00) per annum of the
38 scheduled run of such train within the state of Idaho; provided, that such
39 license shall be in full, and in lieu of all other licenses herein provided
40 for.

41 (5) For each common carrier boat line, ~~for sale sales only~~ for sale sales only in buffet,
42 club or dining rooms, ~~two hundred fifty dollars (\$250)~~ four hundred dollars
43 (\$400) per annum. Such license shall be in full, and in lieu of all other li-
44 censes herein provided for.

45 (6) For each license issued to the owner, operator, or lessee of a golf
46 course as described in section 23-903, Idaho Code, or to the lessee of any
47 premises situate on such golf course, situate in any county having a popula-
48 tion of:

(a) Less than twenty thousand (20,000), ~~two hundred dollars (\$200)~~ three hundred twenty dollars (\$320) per annum;

(b) Twenty thousand (20,000) but less than forty thousand (40,000), ~~three hundred dollars (\$300)~~ four hundred eighty dollars (\$480) per annum; and

(c) Forty thousand (40,000) or more, ~~four hundred dollars (\$400)~~ six hundred forty dollars (\$640) per annum.

(7) For each common carrier airline, for ~~sale~~ sales only in common carrier aircraft, ~~two hundred fifty dollars (\$250)~~ four hundred dollars (\$400) per annum. Such license shall be in full, and in lieu of all other licenses herein provided for.

(8) For each license issued to the owner, operator, or lessee of a restaurant operated on an airport, as described in section 23-903, Idaho Code, situate within the corporate limits of a city, the fee shall be the same as provided in paragraphs (1) through (3), inclusive, of this section.

(9) For each license issued to the owner, operator, or lessee of a restaurant operated on an airport, as described in section 23-903, Idaho Code, situate without the corporate limits of a city, the fee shall be the same as provided in paragraph (6) of this section. Licenses issued under and pursuant to the provisions of this act shall expire at 1:00 ~~a'clock~~ a.m. on the first day of January of the following year.

(10) For each license issued to an owner or operator of a year-round resort as described in section 23-957, Idaho Code, a ~~one (1) time~~ onetime fee of twenty-five thousand dollars (\$25,000), with a subsequent renewal fee of three thousand five hundred dollars (\$3,500) per annum. For each license issued to an owner or operator of a beverage, lodging or dining facility within the premises of a year-round resort as described in section 23-957, Idaho Code, a ~~one (1) time~~ onetime fee of twenty-five thousand dollars (\$25,000) with a subsequent renewal fee of three thousand five hundred dollars (\$3,500) per annum. For each license issued to a lessee of a beverage, lodging or dining facility within the premises of the year-round resort as described in section 23-957, Idaho Code, a ~~one (1) time~~ onetime fee of twenty-five thousand dollars (\$25,000) with a subsequent renewal fee of three thousand five hundred dollars (\$3,500) per annum.

Provided that any licensee who operates for only a portion of a year may have his license fee prorated from the date he commences operation to the end of the calendar year, but in no event for less than six (6) months.

In the event a licensee who was previously issued a license on a prorated basis under the provisions hereof desires to have such license renewed for the same period for the next succeeding year, he shall file his intention to so apply for such license with the director, accompanied by the fee required for the issuance of such license on or before December 31 of the year preceding.

The license fees herein provided for are exclusive of and in addition to other license fees chargeable in the state of Idaho.

The basis ~~upon~~ on which respective populations of municipalities shall be determined is the last preceding census or any subsequent special census conducted by the United States bureau of the census, unless a direct enumeration of the inhabitants thereof be made by the state of Idaho, in which case such later direct enumeration shall constitute such basis.

SECTION 3. That Section 23-1004, Idaho Code, be, and the same is hereby amended to read as follows:

23-1004. DEALERS' LICENSE FEE. Every dealer for whom no license fee is elsewhere provided in this act shall, except as provided in section 23-1003, Idaho Code, pay to the state of Idaho an annual license fee of ~~one hundred dollars (\$100)~~ one hundred sixty dollars (\$160), and a like amount for each separate warehouse used for the purpose of, or in connection with, the importing of beer into this state.

SECTION 4. That Section 23-1005A, Idaho Code, be, and the same is hereby amended to read as follows:

23-1005A. TRANSFER OF LICENSE -- FEE -- APPLICATION FOR APPROVAL. (a) No brewer, dealer or wholesaler of beer license issued pursuant to section 23-1003, Idaho Code, or any beer retailer license issued pursuant to section 23-1010, Idaho Code, may be transferred to another person, including an executor, administrator, or trustee in bankruptcy of the estate of the licensee, unless the transferee shall first have obtained the approval of the director to such transfer ~~upon~~ on an application containing substantially the same information required of an applicant for a brewer's, dealer's, wholesaler's or retailer's beer license, as the case may be. If the transferee possesses all the qualifications and none of the disqualifications for such license, the director shall approve the transfer by issuing a license to the transferee. The fee for each transfer of a brewer's, dealer's, wholesaler's or retailer's beer license shall be ~~twenty dollars (\$20.00)~~ thirty-two dollars (\$32.00), which fee shall accompany the application for transfer.

(b) Application for a transfer of any beer license from one location to another shall be made to the director on forms prescribed and furnished by the director. The director shall approve such transfer upon submission of the application and receipt by the director of a transfer fee of ~~twenty dollars (\$20.00)~~ thirty-two dollars (\$32.00).

(c) The director, in his discretion, may deny the transfer of a license during the ~~pendancy~~ pendency of any proceedings for suspension or revocation instituted pursuant to the provisions of this chapter.

SECTION 5. That Section 23-1007A, Idaho Code, be, and the same is hereby amended to read as follows:

23-1007A. BEER SOLD OR DONATED FOR BENEVOLENT, CHARITABLE OR PUBLIC PURPOSES -- PERMIT REQUIRED. (1) Notwithstanding the provisions of section 23-1007, Idaho Code, ~~to the contrary,~~ nothing shall prevent any licensed dealer, wholesaler or retailer from selling or donating unbroken packages of beer or kegs of beer to a person ~~which~~ that has not been issued any license for the sale of alcoholic beverages in this state, for benevolent, charitable or public purposes if a permit has been issued to the person or nonprofit entity as provided in subsection (2) of this section.

(2) Upon application to the director of the Idaho state police, the director may issue a permit authorizing the sale or dispensing of beer by a person if the director is satisfied that the proceeds, after deducting reason-

able expenses incurred, will be donated for a benevolent, charitable or public purpose. The director shall prescribe the form of the application, which may require:

- (a) Disclosure of names of sponsors;
- (b) Quantities and types of beer products to be used at the event;
- (c) ~~Names~~ The name of the dealer or wholesaler from whom the beer is to be received;
- (d) The retailer, if any, designated by such person or nonprofit entity to receive, store or dispense beer on behalf of the permittee;
- (e) Dates and hours during which the permit is to be effective, not to exceed three (3) consecutive days;
- (f) That the applicant submit a report to the director subsequent to the benevolent, charitable or public purpose event showing the disposition of funds from the event; and
- (g) Such other information directly related to the event and the applicant that the director may require.

The director shall collect a ~~twenty dollar (\$20.00)~~ fee of thirty-two dollars (\$32.00) for each permit issued.

(3) Should the director determine that an applicant, permittee or its representative is violating or has in the past violated any law pertaining to the dispensing or sale of beer by a licensed retailer relating to hours of sale, relating to restrictions concerning age provided in section 23-1013, Idaho Code, or has failed in the past to submit such information as may have been requested by the director, such permit may be summarily suspended by the director prior to hearing, or may be denied or ~~cancelled~~ canceled pending a hearing.

(4) A licensed retailer may, on behalf of the permittee, receive or store beer to be used at the event and may dispense such beer to attendees of the benevolent, charitable or public purpose event for which the permit was issued.

SECTION 6. That Section 23-1014, Idaho Code, be, and the same is hereby amended to read as follows:

23-1014. LICENSE FEES. Every person licensed under the provisions of this chapter shall pay to the state of Idaho an annual license fee according to the following schedule:

(1) Brewer annually producing	Fee
(a) Under 10,000 gallons	\$ 50.00 <u>\$80</u>
(b) 10,000 to 100,000 gallons	\$100.00 <u>\$160</u>
(c) 100,000 to 930,000 gallons	\$200.00 <u>\$320</u>
(d) 930,000 gallons or more	\$500.00 <u>\$800</u>

A like amount shall be paid for each separate brewery operated by the licensee.

(2) Wholesaler, for

~~(a) For each separate warehouse used for the purpose of wholesaling or dispensing beer~~ ~~\$300.00~~ \$480

(3) Dealer

(4) Retailer

(a) For each store from which beer is retailed ~~\$ 50.00~~ \$80

1 (b) For each store from which a licensed retailer sells keg beer for
 2 consumption off premises ~~\$20.00~~ \$32
 3 Nothing in this chapter shall be so construed to prohibit municipalities or
 4 counties from licensing and regulating places of business where beer is sold
 5 to the consumer.

6 SECTION 7. That Section 23-1309A, Idaho Code, be, and the same is hereby
 7 amended to read as follows:

8 23-1309A. SHIPMENT AND RECEIPT OF WINE AUTHORIZED -- LABELING RE-
 9 QUIREMENT. (1) Notwithstanding any other provision of law, rule or regula-
 10 tion to the contrary, any holder of a winery license under section 23-1306,
 11 Idaho Code, or any person holding a license to manufacture wine in another
 12 state who obtains a wine direct shipper permit pursuant to this section may
 13 sell and ship up to twenty-four (24) ~~nine-liter~~ nine (9) liter cases of wine
 14 annually directly to a resident of Idaho, who is at least twenty-one (21)
 15 years of age, for the resident's personal use and not for resale.

16 (2) Before sending any shipment to a resident of Idaho, the wine direct
 17 shipper permit holder must:

18 (a) File an application with the director;

19 (b) Pay a ~~fifty dollar (\$50.00)~~ an annual registration fee of eighty
 20 dollars (\$80.00) if the winery is not currently licensed by the direc-
 21 tor;

22 (c) Provide the director its Idaho winery license number or a true copy
 23 of its current alcoholic beverage license issued by another state;

24 (d) Obtain from the director a wine direct shipper permit;

25 (e) Register with the state tax commission for the payment of sales and
 26 use taxes and excise taxes on wine sold to residents of Idaho under the
 27 wine direct shipper permit.

28 (3) A wine direct shipper permit authorizes the permit holder to do all
 29 of the following:

30 (a) Sell and ship not more than twenty-four (24) ~~nine-liter~~ nine (9)
 31 liter cases of wine annually to any person twenty-one (21) years of age
 32 or older for his or her personal use and not for resale; and

33 (b) ~~Ship~~ If in compliance with subsections (9) and (10) of this section,
 34 ship wine directly to a resident in this state only in compliance with
 35 subsections (8) and (9) of this section.

36 (4) A wine direct shipper permit holder shall:

37 ~~(e)~~ (a) Report to the director, no later than January 31 of each year,
 38 the total amount of wine shipped during the preceding calendar year un-
 39 der the wine direct shipper permit;

40 ~~(d)~~ (b) If the permit holder is located outside this state, pay to the
 41 state tax commission all sales and use taxes, and excise taxes on sales
 42 to residents of Idaho under the wine direct shipper permit. For excise
 43 tax purposes, all wine sold pursuant to a direct shipper permit shall be
 44 deemed to be wine sold in this state;

45 ~~(e)~~ (c) Permit the director and the state tax commission to perform an
 46 audit of the wine direct shipper permit holder's records upon request;
 47 and

48 ~~(f)~~ (d) Be deemed to have consented to the jurisdiction of the alcohol
 49 beverage control division of the Idaho state police, or any other state

agency and the Idaho courts concerning enforcement of this section and any related laws, rules or regulations.

~~(4)~~ (5) A wine direct shipper permit holder located outside the state may annually renew its permit with the director by paying a ~~twenty-five dollar (\$25.00)~~ renewal fee of forty dollars (\$40.00) and providing the director a true copy of its current alcoholic beverage license issued in another state. A wine direct shipper permit holder located in Idaho shall renew its wine direct shipper permit in conjunction with its license to manufacture wine. All registration fees and renewal fees shall be shared equally by the state police and the state tax commission.

~~(5)~~ (6) The director may enforce the requirements of this section by administrative proceedings or suspend or revoke a wine direct shipper permit, and the director may accept payment of an offer in compromise in lieu of suspension, such payments to be determined by rule promulgated by the director.

~~(6)~~ (7) Sales and shipments of wine directly to consumers in Idaho from wine manufacturers in Idaho or in another state who do not possess a current wine direct shipper permit are prohibited. Any person who knowingly makes such a shipment is guilty of a misdemeanor.

~~(7)~~ (8) A licensee who holds a license for the retail sale of wine for consumption off the licensed premises may ship not more than two (2) cases of wine, containing not more than nine (9) liters per case, per shipment, for personal use and not for resale, directly to a resident of another state if the state to which the wine is sent allows residents of this state to receive wine sent from that state without payment of additional state tax, fees or charges. The sale shall be considered to have occurred in this state.

~~(8)~~ (9) The shipping container of any wine shipped under this section must be clearly labeled to indicate that the container contains alcoholic beverages and cannot be delivered to a person who is not at least twenty-one (21) years of age.

~~(9)~~ (10) For wine shipped ~~under~~ pursuant to this section to an Idaho resident, the delivery person shall:

- (a) Have the person who receives the wine shipment sign for it; and
- (b) Not make deliveries to anyone who is under twenty-one (21) years of age or to anyone who is visibly intoxicated; and
- (c) Keep the signature record for one (1) year.

~~(10)~~ (11) Sales authorized under this section are sales made by a retailer who is not authorized to sell at wholesale or sales by a winery of wine produced or bottled by the winery.

~~(11)~~ (12) The director and the state tax commission may promulgate rules to effectuate the purposes of this section and are authorized to exchange necessary information to implement the provisions of this section.

SECTION 8. That Section 23-1315, Idaho Code, be, and the same is hereby amended to read as follows:

23-1315. LICENSE FEES -- COUNTY RETAIL LICENSE FEES -- COUNTY LICENSE REQUIRED FOR RETAILERS. (a) Each importer shall pay to the state of Idaho an annual license fee of ~~three hundred dollars (\$300)~~ four hundred eighty dollars (\$480).

(b) Each distributor shall pay to the state of Idaho an annual license fee of ~~three hundred dollars (\$300)~~ four hundred eighty dollars (\$480) for

1 each separate warehouse used for the purpose of or in connection with the
2 sale or distribution of wine within this state.

3 (c) Each winery shall pay to the state an annual license fee of ~~three~~
4 ~~hundred dollars (\$300)~~ four hundred eighty dollars (\$480).

5 (d) Each retailer and wine by the drink licensee shall pay to the state
6 of Idaho an annual license fee of ~~one hundred dollars (\$100)~~ one hundred
7 sixty dollars (\$160) for each premises for which a license is issued for the
8 sale of wine.

9 (e) In addition to the fee required by subsection (d) of this section,
10 each retailer and wine by the drink licensee shall pay an annual license fee
11 of not to exceed one hundred dollars (\$100) to the county in which the li-
12 censed premises are located. If the licensed premises are located within
13 the incorporated limits of a city, the licensee shall pay an annual license
14 fee of not to exceed two hundred dollars (\$200) to such city. Each city and
15 county within this state ~~are~~ is hereby authorized and empowered to determine
16 the license fees to be paid by each retailer and wine by the drink licensee
17 licensed pursuant to the terms and conditions of this act. No wine license
18 issued by the director shall authorize the sale of wine at retail unless such
19 person possesses a county and city license as may be required by the govern-
20 ing board thereof.

21 (f) Each bonded wine warehouse shall pay to the state of Idaho an an-
22 nual license fee of ~~three hundred dollars (\$300)~~ four hundred eighty dollars
23 (\$480) for each separate warehouse used for the sole purpose of the storage
24 and handling of wine within the state of Idaho.

25 SECTION 9. That Section 23-1317, Idaho Code, be, and the same is hereby
26 amended to read as follows:

27 23-1317. TRANSFER OF LICENSES -- FEE -- APPLICATION FOR APPROVAL. (a)
28 No winery license, wine distributor's license, wine by the drink license,
29 bonded wine warehouse license, or retail wine license may be transferred to
30 another person, including an executor, administrator, or trustee in bank-
31 ruptcy of the estate of the licensee, unless the transferee shall first have
32 obtained the approval of the director to such transfer ~~upon~~ on an application
33 containing the substantially same information required of an applicant for a
34 winery license, wine distributor's license, bonded wine warehouse license,
35 or retail wine license, as the case may be. If the transferee possesses all
36 of the qualifications and none of the disqualifications for such license,
37 the director shall approve the transfer by issuing a license to the trans-
38 feree. The fee for each transfer of a winery license, wine distributor's li-
39 cense, wine by the drink license, bonded wine warehouse license, or a retail
40 wine license shall be ~~twenty dollars (\$20.00)~~ thirty-two dollars (\$32.00),
41 which fee shall accompany the application for transfer.

42 (b) Application to transfer a winery license, wine distributor's li-
43 cense, wine by the drink license, bonded wine warehouse license, or retail
44 wine license from one location to another shall be made to the director on
45 forms prescribed and furnished by the director. The director shall approve
46 any such transfer upon submission of the application and receipt by the
47 director of a transfer fee of ~~twenty dollars (\$20.00)~~ thirty-two dollars
48 (\$32.00).

1 (c) The director, in his discretion, may deny the transfer of a license
2 during the pendency of any proceedings for suspension or revocation insti-
3 tuted pursuant to the provisions of this chapter.

4 SECTION 10. That Section 23-1336, Idaho Code, be, and the same is hereby
5 amended to read as follows:

6 23-1336. WINE SOLD OR DONATED TO PERSONS OR ASSOCIATIONS FOR BENEVO-
7 LENT, CHARITABLE OR PUBLIC PURPOSES. In the event that wine has been sold
8 or donated to a person or association ~~which~~ that desires to dispense or sell
9 such wine and to donate the proceeds from the sale or dispensing thereof for
10 benevolent, charitable or public purposes, the director may issue a permit
11 authorizing such sale or dispensing of wine by such person or association
12 if the director is satisfied that said proceeds, after deducting reasonable
13 expenses incurred in conjunction with the sale or dispensing thereof, will
14 be donated for such benevolent, charitable or public purpose. The director
15 shall prescribe the form of the application for such permit, which appli-
16 cation may require disclosure of names of sponsors; donors, quantities and
17 types of wine products donated; the retailer, if any, designated by such per-
18 son or association to receive, store or dispense donated wine; the dates and
19 hours during which the permit is to be effective, not to exceed three (3) con-
20 secutive days; and such other information as the director may require. The
21 director shall collect a ~~twenty-dollar (\$20.00)~~ fee of thirty-two dollars
22 (\$32.00) for the event for which the permit is to be effective. The direc-
23 tor may require that the applicant submit a report to the director after the
24 benevolent, charitable or public purpose event showing the disposition of
25 funds from the event. Should the director determine that the applicant or
26 its representatives is violating, or has in the past violated, any law per-
27 taining to the dispensing or sale of wine by a licensed retailer relating to
28 hours of sale, or relating to dispensing wine to underaged persons, or has
29 failed in the past to submit such information as may have been requested by
30 the director, such permit may be summarily suspended by the director, prior
31 to hearing, or may be denied pending a hearing. A licensed retailer may, on
32 behalf of the permittee, receive or store wine to be used at the event, and
33 may dispense such wine to attendees of the benevolent, charitable or public
34 purpose event for which the permit has been issued.

35 SECTION 11. SEVERABILITY. The provisions of this act are hereby de-
36 clared to be severable and if any provision of this act or the application
37 of such provision to any person or circumstance is declared invalid for any
38 reason, such declaration shall not affect the validity of the remaining por-
39 tions of this act.

40 SECTION 12. An emergency existing therefor, which emergency is hereby
41 declared to exist, this act shall be in full force and effect on and after
42 July 1, 2026.